Chapter 4

The Application: Bacon's Rebellion, the Buffer Class, and the Constitutional Patch (1676–1787)

RUNTIME LOG: 1676-1787 (VIRGINIA COLONY → PHILADELPHIA)

System Stress (min: class resistance): CRITICAL -- Cross-racial labor solidarity detected. Jamestown burning.
Capital (max: extraction output): AT RISK -- Plantation economy destabilized by unified revolt.
Interference State (Φ_{load}, proximity to τ): TRANSITIONING -- coherence breach pre-patch, then rapid phase-loading via codified racial partition.
Estimated $\Phi_{\text{load}} \in [0.15, 0.55]$; $\rho_\tau > 1.00$ at crash, then $\rho_\tau \in [0.60, 0.75]$ post-patch.
Active Patch: Emergency recompile. Partitioning the poor...
Variables Loaded: E, $O_{\text{racialized}}$, I.
Variables Deployed This Cycle: I_{buffer} (Buffer Class), $F^{\text{proto}}_{\text{enforce}}$ (Proto-Enforcement Class--I_{buffer} deputized to police racial boundary), $P^{\text{v1.0}}_{\text{uppet}}$ (Puppet Class--prototype), $W = \psi_m + j\psi_s$ (the 1705 musket freedom due is $\psi_m > 0$ and pulls θ down from the 90 pure-status axis into Quadrant I, illustratively near 45).
Executing Function: Codify "Whiteness." Weaponize the Implicit Contract into explicit law. Draft constitutional front-end.
Result: [POLICY] Virginia Slave Codes (1705) partition the working class and deputize I_{buffer} as racial enforcers. [POLICY] Three-Fifths Compromise (1787) embeds extraction into federal architecture. [POLICY] Constitutional front-end/back-end separation prototypes P_{uppet}. min variable temporarily stabilized.

The two-variable system (E and $O_{\text{racialized}}$) proved fatally unstable. In the American colonies, the Elite initially failed to implement the Portuguese code strictly. The result was the most dangerous event in Elite history: a unified working class that nearly destroyed

them. This chapter is the first full application of the vector model from Chapters 2–3 to a major system crash: it traces the emergency response—the invention of the Buffer Class (I_{buffer}), the formalization of ψ, and the constitutional patch that separated the Elite's front-end from their back-end—and shows how the invariant $\Delta \max = 0$ was preserved throughout: concessions that stabilized I_{buffer} were funded through deeper extraction from $O_{\text{racialized}}$, not by any reduction in E's own share (see the gloss on $\Delta \max = 0$ in Chapter 2).

Bacon's Rebellion exposes the virus's replication problem. A two-variable extraction system could seize labor, but it could not reliably colonize the mind of the poor European worker who shared the field, hunger, and violence of the enslaved African. The invention of whiteness solved that host-level failure. It gave the Buffer Class a psychological wage and a perception filter that recoded the person beside them as the dangerous Out-group whose containment proved membership in the protected class, displacing the prior perception of a co-exploited worker.

4.1 The Application: Bacon's Rebellion and the Partition of the Poor (1676)

In the American colonies, the Elite initially failed to implement this code strictly. The "proto-working class" was a mix of European indentured servants (L_{white}) and enslaved Africans (L_{black}). Because they shared the same oppressive conditions, the Portuguese distinction didn't stop them from seeing each other as allies.

The quantitative evidence for this shared condition is stark. Between 300,000 and 500,000 British and Irish people were shipped to the colonies as indentured servants over roughly 150 years—many of them involuntarily. Ship records listed them alongside livestock and supplies, as *cargo*. The mortality data mirrors the Middle Passage: approximately 30% died on the Atlantic voyage; another 40% died during the period of bondage. Children were kidnapped en masse—a single trafficker named William Thiene abducted 840 children from Britain in a single year. Women were used as breeders: if a servant bore a child, the child was "bound to serve until at least age 21, ensuring planters had a next generation of free labor" Jordan and Walsh 2008. Elizabeth Abbott, abducted from England, was whipped 500 times by her enslaver after repeated escape attempts and died from her injuries. Nobody was charged. Out of the shipment of 300 children she arrived with, only 12 survived more than two years.

These were not "indentured servants" in any meaningful contractual sense. As the historians Don Jordan and Michael Walsh documented in *White Cargo*, the system was

"slavery in all but name"—and for many, the legal distinction between temporary and permanent bondage was fiction. Out of 5,000 servants arriving in one colony between 1670 and 1680, only 241 ever became landowners; approximately 3,500 died before completing their contracts. The Dutch trader David Pietersz de Vries observed English planters gambling away their servants at card games, "treating human lives as poker chips." Colonial courts almost universally sided with planters on complaints of abuse; contracts could be extended on fabricated charges—breaking a tool, talking back, falling ill.

White indentured servitude was not "just as bad" as African chattel slavery, particularly after the racial codes formalized. The operative point is that *before* the racial partition, the Elite's extraction algorithm operated on a class basis across both populations. White servants and Black enslaved people shared the same fields, the same brutality, the same mortality rates—and above all, the same *enemy*. Records document them running away together, sharing food, hiding in forests, and plotting rebellion. George Washington himself placed runaway advertisements in the *Maryland Gazette* and the *Virginia Gazette* offering identical rewards for the capture of both Black and white runaways—the same man, the same reward structure, the same system of human property management applied across racial lines.

This cross-racial solidarity was the system's existential vulnerability. It led to the system crash of **Bacon's Rebellion (1676)**. The united Labor Class ($L_{white} \cup L_{black}$) burned Jamestown to the ground, proving that:

$$\text{If} \quad (L_{white} + L_{black}) > E \quad \rightarrow \quad \text{Revolution} \tag{4.1}$$

4.2 The Pre-Compilation Patches: Prototyping the Racial Partition (1640–1691)

The 1705 Slave Codes were the culmination of a 65-year iterative compilation cycle in which the Elite tested, debugged, and incrementally deployed the racial partition through a sequence of judicial decisions and statutes—each one closing a specific loophole in the extraction kernel. No single legislative session produced them.

4.2.1 The Gendered Baseline: Regulatory Control and Reproductive Deviance

To fundamentally understand the modern criminalization of pregnancy outcomes, we must establish the historical baseline of state-sanctioned violence against women in the United

States and its preceding colonies. The earliest documented execution of a woman in the American colonies was that of **Jane Champion** in 1632 in the Virginia Colony.

Among the most distinctly gendered crimes in early American legal history was the offense of **"concealing a birth,"** adopted beginning in 1696 to regulate female sexuality and punish women who gave birth out of wedlock. These early protocols established that the state's regulatory control over the female body would be enforced through the ultimate penalty from the very beginning of the colonial project. A comprehensive analysis of this parallel axis of oppression—the gendered axis (O_{gendered})—is provided in Chapter 8.

4.2.2 John Punch (1640): The First Racial Sentencing Disparity

The earliest documented instance of the racial partition operating as law occurred 36 years *before* Bacon's Rebellion. In 1640, three indentured servants (John Punch, a Black man; a Scotsman; and a Dutchman) ran away together from their Virginia enslaver. All three were recaptured. The court sentenced the two white servants to four additional years of indenture. John Punch was sentenced to servitude *for life*.

Same crime. Same act of cross-racial solidarity. Racially bifurcated punishment. The Virginia court, in a single judicial act, instantiated the I_{buffer} / $O_{\text{racialized}}$ partition: the white men's punishment was temporal (additional years within the existing system); the Black man's punishment was categorical (permanent exclusion from the system of eventual freedom). The court articulated no racial theory, cited no scripture or science, and simply treated the same behavior differently based on phenotype—the first recorded instance of the function $O_{\text{racialized}} = f(\text{phenotype})$ operating in American law.

The Punch case is analytically significant for a second reason: it documents interracial solidarity *in action* (three workers of different races running away together) and reveals the judicial system's response, which destroyed the conditions that made solidarity possible; the solidarity itself went unpunished. The system's answer to cross-racial cooperation was legal differentiation first, ideological justification second. The causal arrow of the framework—Elite economic interests → systemic racialization → interpersonal prejudice—is visible here in its earliest American instantiation.

4.2.3 The Codification Sequence (1662–1669): Compiling the Racial Kernel

Over the next three decades, the Virginia and Maryland legislatures iteratively closed the loopholes in the extraction kernel through a sequence of statutes, each one hardening the racial partition along a specific axis:

1. **1662 — *Partus sequitur ventrem* (Virginia):** Hereditary slavery codified. A child's legal status now followed the *mother*, not the father—closing the loophole by which children of enslaved women and white men might claim free status through paternal lineage. The rule operated as *supply-chain optimization*; moral principle was not its basis. By tying enslaved status to the maternal line, the Elite ensured that the rape of enslaved women by white enslavers *expanded* the enslaved labor supply, preventing dilution.

2. **1664 — Maryland Slave Law:** All persons of African descent declared slaves *for life*. This closed the temporal boundary: where indentured servitude had a contractual endpoint, the Maryland statute eliminated it entirely for Black people, making the condition permanent and irrevocable regardless of individual circumstance.

3. **1669 — "An Act About the Casual Killing of Slaves" (Virginia):** If an enslaved person died "during correction," the death would not be treated as a felony. This statute removed the last moral constraint on the extraction kernel: the prohibition on killing. The Elite explicitly exempted themselves from homicide liability when the victim was enslaved property—a legal distinction never codified for white servants, no matter how brutally they were treated. The law's internal logic was revealing: it assumed "no man would destroy his own property willingly," thereby defining the enslaved person as a capital asset whose destruction was merely an imprudent business decision.

Each statute corresponds to a specific constraint on the extraction kernel:

- 1662 closes the **boundary leak**: heritable enslavement ensures a permanent, self-reproducing labor supply.

- 1664 closes the **temporal leak**: life servitude eliminates the contractual endpoint that still connected Black bondage to the indentured servitude model.

- 1669 removes the **enforcement liability**: F_{enforce} (here, the slaveholding class itself) can kill without legal consequence.

Together, these three statutes compiled the racial kernel before 1705 formalized the user interface. The 1705 Slave Codes were a *release version*—the public-facing codification of a system that had been iteratively debugged through judicial and legislative patches for 65 years.

4.2.4 The Boundary Enforcement Act (1691): Criminalizing the Crossing

With the racial categories being assembled through the 1662–1669 sequence, the Elite faced a structural anxiety: the categories were inherently *unstable*. Cross-racial reproduction would produce ambiguous-status children who blurred the partition line. If the boundary between I_{buffer} and $O_{\text{racialized}}$ could not be policed at the reproductive level, the entire architecture was vulnerable to dissolution through miscegenation.

In 1691, Virginia enacted a law that criminalized the crossing itself: a white woman who bore a child with a Black man would have *five years added to her indenture*, and the child would be *indentured for thirty years*. The statute functioned as a **boundary enforcement mechanism**; its purpose was to maintain the racial partition. Sexual behavior was regulated only insofar as it threatened that partition. The statute maintained:

$$I_{\text{buffer}} \cap O_{\text{racialized}} = \emptyset \tag{4.2}$$

The[1] 30-year indenture for a child born of that crossing is analytically revealing: the child was neither fully enslaved (the father's status did not automatically apply) nor fully free (the mother's "transgression" of the racial boundary imposed a punitive condition). The system treated boundary-blurring as a vulnerability requiring punishment-as-deterrent—anticipating the "one-drop rule" and all subsequent racial purity statutes by over a century.

The 1691 law demonstrates that the Elite recognized from the beginning that the racial partition was *artificial* and required *coercive maintenance*. A natural category does not need a law criminalizing its violation. The very existence of the boundary enforcement statute proves that the partition was engineered—and that the Elite knew it was fragile. This structural anxiety—the fear that the racial wall could be dissolved through human solidarity—is the same anxiety that would drive the Black Codes, the anti-miscegenation laws, Jim Crow, and the modern carceral state. The system has been repairing the same artificial partition for over 350 years.

The 276-Year Arc: From the 1691 Statute to *Loving v. Virginia* (1967). The 1691 Virginia boundary enforcement act established a legal lineage that persisted beyond colonial governance. Virginia's 1924 Racial Integrity Act (a direct statutory descendant

[1]This equation is classified as Tier 3 (ordinal/structural); the set-disjointness condition $I_{\text{buffer}} \cap O_{\text{racialized}} = \emptyset$ is a structural claim validated by the 1691 Virginia anti-miscegenation statute and its 276-year legal lineage through *Loving v. Virginia* (1967) Supreme Court of the United States 1967a. See the Empirical Methodology chapter (p. lxv) and the Empirical Validation Index.

of the 1691 law) was the instrument under which Mildred and Richard Loving were arrested in 1958, convicted in 1959, and sentenced to one year in prison (suspended on the condition that they leave Virginia for twenty-five years). Mildred Loving was a Black woman. Richard Loving was a white man. They had married in Washington, D.C. (a jurisdiction without the prohibition) and returned to Caroline County, Virginia to live as husband and wife. The state treated their domestic arrangement as a felony. In 1965, with their case still on appeal, the Circuit Court of Caroline County denied their motion to vacate. The presiding judge, Leon Bazile, wrote an opinion whose text is now publicly accessible through the Internet Archive's 2026 Supreme Court records release Bazile 1965; Internet Archive, Democracy's Library 2026:

> "Almighty God created the races white, black, yellow, malay and red, and he placed them on separate continents. And but for the interference with his arrangement there would be no cause for such marriages. The fact that he separated the races shows that he did not intend for the races to mix."

The framework's classification of this text is unambiguous. Judge Bazile is producing Component 3 ideological justification: the theological overlay applied to a political-economic substrate. The 1691 statute exists for Buffer-Class-maintenance reasons—equation 4.2 must hold ($I_{\text{buffer}} \cap O_{\text{racialized}} = \emptyset$) because cross-racial kinship networks dissolve the partition that the entire extraction architecture depends upon. Bazile's deity is invoked to sanctify a Bacon's-Rebellion-era security patch. What the *Loving* record makes uniquely visible is the self-documentation of Component 3 by an officer of the state, in an official judicial opinion, 263 years after the original statute: the claim that the partition is divinely ordained is the system's own witness against itself. A structure that cites God to justify its maintenance has no stable justification in nature, science, or human solidarity; each of those would run the other direction.

The Supreme Court unanimously reversed in *Loving v. Virginia*, 388 U.S. 1 (1967) Supreme Court of the United States 1967a, striking the Racial Integrity Act as unconstitutional under both the Equal Protection and Due Process Clauses of the Fourteenth Amendment. Chief Justice Warren, writing for a unanimous Court, named the system's logic with unusual directness: "There is patently no legitimate overriding purpose independent of invidious racial discrimination which justifies this classification. The fact that Virginia prohibits only interracial marriages involving white persons demonstrates that the racial classifications must stand on their own justification, as measures designed to maintain **White Supremacy**."[2] This was *Marbury* exercised: a court voiding a legislative

[2] *Loving v. Virginia*, 388 U.S. 1, 11 (1967) (Warren, C.J.) (emphasis added). The Bazile–Warren

act that failed constitutional scrutiny. The framework's structural prediction holds: voiding the anti-miscegenation law removed one instance of the boundary enforcement mechanism while the surrounding architecture (criminal sentencing disparities, housing segregation, employment discrimination, differential enforcement) remained entirely intact. The kernel does not require any single statute; it requires the partition. When one enforcement mechanism is struck, the others absorb its function. *Loving* is proof of concept: the Out-group's strategic litigation can edit the source code. The extraction kernel's adaptive resilience is that the source code is larger than any single edit.

4.3 The Patch: The Explicit Codification of "Whiteness" (1705)

As established in Chapter 3, the concept of racial whiteness was *created* in 15th-century Portugal through the Implicit Contract—the unwritten agreement that divided the population into a privileged In-group (I) and an exploited Out-group ($O_{\text{racialized}}$), compensating the former with the psychological wage (ψ). But in Portugal, this boundary remained implicit: informal, unwritten, and enforced by custom rather than statute.

To prevent a recurrence of the cross-racial solidarity that had nearly toppled them, the Virginian Elite **explicitly defined and legally codified** whiteness. The Portuguese had originated the concept; the Virginians hardened it into law. They enacted the **Virginia Slave Codes of 1705**, which hardened the Portuguese implicit boundary into an explicit legal wall between the two groups Allen 1997; Kendi 2016.

1. **The Partition:** They assigned L_{white} to a new category: "White."
2. **The Bribe:** They gave poor whites immunity from chattel slavery and a joint wage: arms in the material channel ψ_m, coupled with deputized authority to police the Black population in the status channel ψ_s (Chapter 3; Section 9.3.6).

This was the definitive move of the American algorithm: It used "Race" to destroy "Class." It recruited the poor white population to act as the **Buffer Class**, protecting the Elite from the very people they should have been allied with.[3]

collision is the framework in miniature: a state judge invoking God in 1965 to justify a 1691 security patch; a Chief Justice in 1967 characterizing that patch accurately as "White Supremacy." Both texts are now publicly accessible in the Internet Archive's 2026 SCOTUS records release Internet Archive, Democracy's Library 2026. The framework requires only that its readers read them.

[3]Equation 4.3 is classified as Tier 3 (ordinal/structural); the structural transition from poor white laborer to Elite defender is an ordinal claim validated by the documented sequence from Bacon's Rebellion

$$\text{Buffer Created:} \quad I_{poor} \rightarrow \text{Defender of } E \tag{4.3}$$

4.4 Formalizing the Buffer Class (I_{buffer}): From Implicit In-group to Weaponized Partition

In Chapter 3, we introduced the In-group (I) as the automatic byproduct of the Portuguese Implicit Contract—the working-class population compensated with the psychological wage (ψ) in exchange for tolerating the extraction of the Out-group. But the In-group as it existed in 15th-century Portugal was an *implicit* variable: the contract was unwritten, the racial boundary was informal, and significantly, the partition had no legal enforcement mechanism in the American colonies.

Bacon's Rebellion proved that an implicit In-group left the system vulnerable. The invention of "Whiteness" in 1705 was the *formalization* of this variable—the upgrade from a passive In-group to an actively **weaponized Buffer Class**. The Elite's emergency patch was to harden the racial boundary with legal force, transforming the In-group from a loosely defined beneficiary of the psychological wage into a legally codified human shield between E and $O_{\text{racialized}}$. We now formalize this upgraded tier.

The Buffer Class

The Buffer Class (I_{buffer}): The remaining working-class In-group. They produce the economic reserves and provide the ideological cover required to legitimize the state, pacified by the suppression allocation ($\psi = \psi_s + \psi_m$) and the illusion of democratic agency. Building on W.E.B. Du Bois's formulation of the "**public and psychological wage**" W.E.B Du Bois 1935—his term capturing both the symbolic status benefits and the public infrastructure advantages (better schools, police protection, court leniency) granted to white workers—this framework formalizes ψ as a two-mode variable and traces its operation four centuries before Du Bois's Reconstruction-era analysis:

- $\psi_s(t)$: **status wage**—the non-material guarantee of ontological superiority and racial privilege (Du Bois's "titles of courtesy," hierarchy over $O_{\text{racialized}}$). Default mode. Costs E nothing to dispense.

(1676) to the Virginia Slave Codes (1705). See the anchor case study on p. 120 and the Empirical Methodology chapter (p. lxv).

- $\psi_m(t) \geq 0$: **material wage**—calibrated material concession (land grants, welfare benefits, subsidized homeownership) deployed only when $M(t) \to \tau$. Invariant: $\psi_m(t)$ is sourced from *increased* $O_{racialized}$ *extraction*, never from reduced Elite share. $\Delta \max = 0$ is preserved.

The foundational inequality of the system upgrades to three tiers:

$$\text{Benefit}(E) \gg \text{Benefit}(I_{\text{buffer}}) > \text{Benefit}(O_{\text{racialized}}) \tag{4.4}$$

where[4] $\text{Benefit}(I_{\text{buffer}})$ consists of the suppression allocation ψ rather than Elite-level extraction, and $\text{Benefit}(E)$ reflects the material wealth extracted from all tiers below.

The suppression allocation ψ is a *designed feature* of the system. In its default mode ($\psi_m = 0$), E pacifies I_{buffer} without surrendering a single unit of extraction: racial status, legal privileges over $O_{\text{racialized}}$, and the right to police the racial boundary cost the Elite nothing material. When kinetic threat demands escalation ($\psi_m > 0$), the Elite fund the material concession by deepening $O_{\text{racialized}}$ extraction—ensuring the buffer class's material gains are always paid for by the Out-group, never by E. This makes ψ the key variable in the system's minimization of class resistance. The system thus produces a paradox: I_{buffer} defends a hierarchy that materially harms them, because the suppression allocation creates the *perception* of shared interest with E and the *perception* of threat from $O_{\text{racialized}}$. Both perceptions serve E's extraction objectives.

The Autonomy Wage: The Currency of Complicity

We must refine our understanding of the psychological wage (ψ). Beyond the passive comfort of "status superiority," it is actively experienced as **Autonomy Sovereignty** (ψ_{autonomy}).

The Buffer Class is compensated with the visceral feeling that *their* autonomy is a universal, unassailable right, while the Out-group's autonomy is a conditional privilege granted (and revocable) by the state. This explains the intense, seemingly disproportionate rage exhibited by the Buffer Class when Out-group rights are advanced.

Because the Buffer Class possesses little actual material capital (which is hoarded by E), their primary "wealth" is this Autonomy Wage. Therefore, they perceive any gain in Out-group autonomy as a direct, zero-sum theft of their own sovereign status; the

[4]This equation is classified as Tier 3 (ordinal/structural); the ordinal inequality is confirmed by the documented wealth and legal-status distributions in colonial Virginia 1705–1776—planters' estates versus indentured servant wages versus enslaved persons' legal non-personhood. See the Empirical Methodology chapter (p. lxv) and the Empirical Validation Index.

possibility of equality does not enter their calculation. When the system grants $O_{\text{racialized}}$ the right to vote, or the right to exist in previously segregated spaces, I_{buffer} experiences this mathematically as a wage cut. This guarantees that I_{buffer} will viciously police the boundary on behalf of E, ensuring the min variable (resistance to the Elite) remains near zero.

4.4.1 The Necessary Condition Theorem: Who Actually Needed Whom